

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-31

NIELSEN & BAINBRIDGE, LLC

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

JOINT STATUS REPORT

Pursuant to the Presiding Officer's January 28, 2026 Scheduling Order and Order to Resubmit (the "Order"), Complainant Nielsen & Bainbridge, LLC ("NBG") and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, "Respondents" and, collectively with Complainant, the "Parties"), by their respective undersigned counsel, have conferred and submit this joint status report ("JSR") and proposed discovery schedule:

On January 29, 2026, the Parties participated in a preliminary mediation conference with the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS).

The Parties have exchanged a draft Motion for Protective Order stipulating confidential treatment of documents produced in discovery, and have exchanged a draft ESI Protocol including search terms.

On January 30, 2026 Complainant served Respondents with Initial Disclosures supplementing or revising those served on February 10, 2025 in Docket No. 25-02. Custodians identified by Complainant in the proposed ESI search terms appear to be former employees of NBG, or individuals retained by the bankrupt estate. Respondents note that they may therefore face hurdles obtaining relevant fact witness testimony with respect to Complainant's handling of

each of the shipments alleged in its claim.

The Parties propose the below schedule, which provides for close of discovery by July 1, 2026 as requested in the Order:

EVENT	ALJ DEADLINE/NEW PROPOSED DEADLINE
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	February 9, 2026
Parties to contact CADRS re potential for mediation.	March 2, 2026
Parties to serve objections and initial responses to initial RFPs	March 11, 2026
Parties to serve objections and initial responses to initial interrogatories	March 11, 2026
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	April 6, 2026
Substantial completion of productions of documents and ESI in response to initial RFPs	April 20, 2026
Parties to File Joint Status Report	May 7, 2026
Complete depositions of fact witnesses	May 21, 2026 ¹
Last day to serve interrogatories, requests for admission, and RFPs	May 21, 2026
Disclosure of initial expert reports, if any	June 4, 2026
Disclosure of rebuttal expert reports, if any	June 19, 2026

¹ Complainant notes that should discovery in the three proceedings brought by Complainant proceed on the same discovery timeframe, that each of Complainant’s former-employee deponents may need to be deposed on more than one day during the deposition time frame by the various respondents, necessitating additional time to take depositions across now-severed cases.

Complete expert depositions	July 1, 2026
Close of discovery	July 1, 2026
Complainant's initial brief, proposed findings of fact, and appendix	July 29, 2026
Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	August 26, 2026
Complainant's reply and responses to proposed findings of fact	September 9, 2026

Dated: February 4, 2026

Respectfully submitted,

HUTH REYNOLDS LLP

Mohini Priya Banerjee Rarrick

Mohini P.B. Rarrick
(818) 235-9753
mpriya@huthreynolds.com
Karl C. Huth
(212) 731-9333
huth@huthreynolds.com
Matthew J. Reynolds
(646) 872-9353
reynolds@huthreynolds.com
Gregory A. Crapanzano II
(917) 575-3440
gcrapanzano@huthreynolds.com
41 Cannon Court
Huntington, NY 11743

*Counsel for Complainant Nielsen &
Bainbridge, LLC*

BLANK ROME LLP

/s/ Keith B. Letourneau

Keith B. Letourneau
Evan Spencer
717 Texas Avenue, Suite 1400 Houston, Texas
77002 (713) 402-7640
Keith.Letourneau@BlankRome.com
Evan.Spencer@blankrome.com
Matthew Thomas
1825 Eye Street N.W.
Washington, DC 20006
(202) 772-5971
Matthew.Thomas@BlankRome.com

JEFFREY/FENNEMAN LAW + STRATEGY,
PLLC

/s/ Rebecca A. Fenneman

Rebecca A. Fenneman
Eric C. Jeffrey
Kaya C. Massey
Nicholas L. Webb
700 12th St., NW, Suite 700
Washington, DC 20005
Tel. 202-904-2301
RFenneman@JeffreyFenneman.com
EJeffrey@JeffreyFenneman.com
KMassey@JeffreyFenneman.com
NWebb@JeffreyFenneman.com

*Counsel for Respondents Orient Overseas
Container Line Limited and OOCL (Europe)
Limited*